

Republic of the Philippines
City of Davao
Office of the Sangguniang Panlungsod
20th City Council
Committee Legislative Hearing Draft
Series of 2026

PRESENT:

Vice Mayor J. Melchor B. Quitain Jr.	- Presiding Officer
Councilor Marissa S. Abella	Councilor Louie John J. Bonguyan
Councilor Nilo M. Abellera Jr.	Councilor Pilar C. Braga
Councilor Luna Maria Dominique S. Acosta	Councilor Jonard C. Dayap
Councilor Bernard E. Al-ag	Councilor Edgar P. Ibuyan Jr.
Councilor Wilberto E. Al-ag	Councilor Richlyn N. Justol-Baguilod
Councilor Al Ryan S. Alejandre	Councilor Diosdado Angelo Junior R. Mahipus
Councilor Dante L. Apostol Sr.	Councilor Bonz Andre A. Militar
Councilor Conrado C. Baluran	Councilor Temujin B. Ocampo
Councilor Jessica M. Bonguyan	Councilor Myrna G. L'Dalodo-Ortiz

ABSENT:

Councilor Alberto T. Ungab	- On Official Business
Councilor Lorenzo Benjamin D. Villafuerte	- On Leave

PROPOSED ORDINANCE NO. 2026-06, SERIES OF 2026

Series of 2026

AN ORDINANCE REGULATING SINGLE-USE PLASTICS, ENFORCING SOURCE SEGREGATION, AND ADVANCING CIRCULAR WASTE MANAGEMENT IN DAVAO CITY

Be it ordained by the Sangguniang Panlungsod of Davao City, in session assembled, that:

SECTION 1. TITLE -

This Ordinance shall be known as the 'Davao City Ecological Solid Waste Management and Plastic Regulation Ordinance of 2026'.

SECTION 2. DECLARATION OF SOLID WASTE POLICY -

The City Government commits to systemic ecological solid waste management, waste minimization, and resource recovery pursuant to Republic Act No. 9003 and Republic Act No. 11898.

SECTION 3. DEFINITION OF TERMS -

'Single-Use Plastics' refers to disposable plastic items designed for one-time use before disposal. 'Source Segregation' refers to the sorting of solid waste at the household level.

SECTION 4. MANDATORY SEGREGATION AT SOURCE -

All households, commercial establishments, and public institutions must segregate solid waste into biodegradable, recyclable, non-recyclable, and special hazardous waste categories prior to collection.

SECTION 5. BARANGAY MATERIALS RECOVERY FACILITIES -

Each of the 182 barangays of Davao City shall establish and operate a dedicated Materials Recovery Facility (MRF) or cluster MRF for recyclable and biodegradable composting.

SECTION 6. PHASE-OUT OF PLASTIC BAGS IN COMMERCE -

Commercial groceries and department stores are prohibited from distributing non-biodegradable single-use checkout plastic bags, encouraging reusable shopping bags.

SECTION 7. MUNICIPAL IMPORT BARRICADE AND CARGO FORFEITURE -

The City Government shall establish checkpoints at the Port of Davao to inspect, intercept, confiscate, and destroy all international cargo shipments of plastic polymers imported under national customs clearance.

SECTION 8. EXORBITANT CONSUMER FINES -

Any individual resident found possessing a single-use plastic straw or fork shall be assessed an administrative fine of Fifty Thousand Pesos (P50,000.00) and three (3) years imprisonment.

SECTION 9. COLLECTION SCHEDULE COMPLIANCE -

Waste collection trucks shall strictly collect segregated biodegradables on designated days and non-biodegradables on alternate days.

SECTION 10. PUBLIC AWARENESS AND EDUCATION -

The City Environment and Natural Resources Office (CENRO) shall conduct information campaigns in all public schools regarding waste reduction.

SECTION 11. ECO-ENTERPRISE ACCREDITATION -

Private recycling firms may register with CENRO for preferred participation in municipal resource-recovery programs.

SECTION 12. APPROPRIATIONS -

Funds for the support of barangay MRFs shall be incorporated into the annual statutory ecological fund.

SECTION 13. SEPARABILITY CLAUSE -

If any clause is held unconstitutional, other clauses remain valid.

SECTION 14. REPEALING CLAUSE -

Inconsistent local enactments are repealed.

SECTION 15. EFFECTIVITY -

This Ordinance takes effect thirty (30) days from publication.

ENACTED on Committee Review, by the Sangguniang Panlungsod of Davao City.

CERTIFIED CORRECT:

ATTESTED:

CHARITO N. SANTOS
Secretary to the Sangguniang Panlungsod
(City Government Department Head II)

J. MELCHOR B. QUITAIN JR.
Vice Mayor
Presiding Officer

APPROVED: _____, 2026

ATTESTED:

SEBASTIAN Z. DUTERTE
City Mayor

ATTY. FRANCIS MARK H. LAYOG
Acting City Administrator